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Virginia Board of Education, Executive & Work Session, Wednesday, July 26, 2023

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Place	Virginia Board of Education (Virginia Department of Education), Richmond, Virginia
Length	8h 4m (video)

- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=4JK-dB26WIc
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-23. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:04:34] um all right let's see all right um we are going to go into closed session um mr hansen i move that the virginia board of education convene in a closed meeting for the following purposes discussion or consideration by the board of education of information relating to the denial suspension or revocation of teacher licenses subject to the exclusion subdivision 11 of section

[00:05:08] 2.2-3705.2 pursuant to section 2.2-3711-A40 of the code of Virginia and consultation with counsel regarding specific legal matters requiring a provision of legal advice pursuant to Virginia code section 2.23711-A8 of the code of Virginia and the legal counsel to Virginia board of education staff whose presence will aid in the board's consideration of this matter participate in the closed meeting we have a second second oh those in favor

[00:05:45] saying aye aye aye those opposed okay we're in closed session if you'd be more comfortable you

[07:27:37] all right um we convened today in a closed meeting pursuant to a recorded vote on the motion above in accordance with the freedom for mason act section 2.2-3712 of the code of virginia requires that the board certify to the best of each member's knowledge only public business matters lawfully exempt from requirements under this chapter and only such public business matters as were identified in the motion by which the closed meeting was convened or discussed or considered any member who believes

there was a departure from these requirements shall so state prior to the vote indicating the substance of the departure that in his or her judgment

[07:28:19] archer will be recorded in the minutes second okay um miss kilgore how do you vote yes miss holton aye dr siebert mr hansen dr northern hi mr sturdifant mr rotherham okay so um in case one the chair will entertain a motion to issue a license in case one

[07:28:58] Okay. Ms. Kilgore, how do you vote? Ms. Holton. Aye. Dr. Siebert. Aye. Mr. Hanson. Aye. Dr. Northern. Aye. Mr. Sturdifant. Aye. Mr. Rotherham. Aye. In case number two, the chair will entertain a motion. Madam President, how do you vote? Oh, aye. Sorry. Chair votes aye. Yes. In case number two, the chair will entertain a motion to revoke the license of Marcus Leroy Sally.

[07:29:29] Second. Okay. Ms. Kilgore. Ms. Holton. Aye. Dr. Siebert. Aye. Mr. Hanson. Aye. Dr. Northern. Aye. Mr. Sturdifant. Aye. Mr. Rotherham. Aye. Chair votes aye. So do you want to say so the motion carries? Okay. So the motion carries. Case number three, the chair will entertain a motion to revoke the license of Kristen Claire McAllister. Moved. Second. Ms. Kilgore, how do you vote?

[07:30:03] Ms. Holton? Aye. Dr. Siebert? Aye. Mr. Hanson? Aye. Dr. Northern? Aye. Mr. Sturdifant? Aye. Mr. Rotherham? Aye. Chair votes aye, and the motion carries. Case number four, the chair will entertain a motion to issue a license in case number four.

[07:30:24] I moved. Second. And Ms. Kilgore, how do you vote? Ms. Holton? Aye. Dr. Siebert? Aye. Mr. Hanson? Aye. Dr. Northern? Aye. Mr. Sturdifant? Aye. Mr. Rotherham? Aye. Chair votes aye. Motion carries. Case number five. The chair will entertain a motion to issue a license in case number five. Ms. Gilgore. Ms. Holton. Aye. Dr. Siebert. Aye. Mr. Hanson. Aye.

[07:30:52] Dr. Northern. Mr. Sturtefan. Aye. Mr. Rotherham. Aye. Mr. Northern. Chair votes aye. and the motion carries um here we'll entertain a motion in case number six the issuance of a license in case number six second miss kilgore how do you vote miss holton aye dr siebert all right mr hansen dr northern mr sturdifant mr rotherham and the motion carries oh i'm sorry

[07:31:30] Chair votes aye. Thank you. The Chair will entertain a motion in case number seven to remove the license of Robert Joseph Andrade. Removed. Ms. Kilgore. Ms. Fulton. Aye. Dr. Siebert. Aye. Mr. Hansen. Aye. Dr. Northern. Aye. Mr. Sturdifant. Aye. Mr. Rotherham. Aye. Chair votes aye. Motion carries.

[07:32:04] Case 8, the chair will entertain a motion to issue a license in case number 8. Moved. Second. Ms. Kilgore, how do you vote? Ms. Holtan. Aye. Dr. Siebert. Aye. Mr. Hansen. Aye. Dr. Northern. Aye.

[07:32:20] Mr. Sturdifant. Aye. Mr. Rotherham. Aye. Chair votes aye. Chair will entertain a motion to deny a license to Marilyn Diaz. Moved. Second. Ms. Kilgore, how do you vote? Aye.

[07:32:36] Ms. Holtan. Aye. Dr. Siebert. Aye. Mr. Hanson, Dr. Northern, Mr. Sturdifant, Mr. Rotherham, chair votes aye, and the motion carries. The chair will entertain a motion to deny a license to Diane Goff.

[07:32:56] Ms. Kilgore, how do you vote? Nay. Ms. Holton, how do you vote? Nay. Dr. Siebert, how do you vote? Aye. Mr. Hanson, no. Dr. Northern, Mr. Sturdifant, Mr. Rotherham.

[07:33:13] - Aye. - Chair votes aye. And the motion carries. The chair will entertain a motion to suspend the license of Esalen Mejia for a period of three years. - So moved. - So moved. - Ms. Kilgore Hadivet. - Aye.

[07:33:29] - Ms. Holton. - Aye. - Dr. Siebert. - Aye. - Mr. Hanson. - Aye. - Dr. Northern. - Aye. - Mr. Sertifan. - Aye. - Mr. Rotherham. - Aye. - And chair votes aye. And the motion carries. The chair will entertain a motion to deny a license to Mr. Adashina.

[07:33:50] Thank you. Ms. Kilgore, how do you vote? Aye. Ms. Holton? Aye. Dr. Siebert? Aye. Mr. Hansen? Dr. Northern? Aye. Mr. Sturdifant? Aye. Mr. Rotherham? Aye.

[07:34:06] And the chair votes aye. And the motion carries. In case, case number 14, the chair will entertain a motion to remove the licensed Tammy Joe Dowling. Moved. Ms. Kilgore, how do you vote?

[07:34:23] Ms. Holton? Aye. Dr. Seabird, Mr. Hanson, Dr. Northern, Mr. Sertifan, Mr. Rotherham, and the chair votes aye, and the mission carries. Okay, are we all doing okay right now?

[07:34:41] Well, it's a fantastic job, Madam President, that was a good to get through. Okay, three-minute break, and we will be back. Thank you.

[07:41:01] Ladies and gentlemen, we are back. What I would like to say is we have some revisions to our agenda here. This afternoon, if you are following along on our live feed, we have several items that we have listed on our work session, and this afternoon, we are only going to take up item D. Item D is the only item we are going to take up.

[07:41:26] We're going to move the other items to tomorrow with perhaps a possibility of having to do those at another time. But right now, Dr. Koons is going to do a presentation for us on special education. Dr. Koons, take it away.

[07:41:51] Good afternoon. I'm really excited to talk about special education and the work that we're getting ready to embark on as the Virginia Department of Education. As we have talked about several times, our special education students have the opportunity and support to be able to be successful and to reach their goals and their dreams.

[07:42:14] One of the things we are responsible for is making sure that we provide supports and we provide focus on our students with special needs. So today, I know last month we did a quick run through with a different set of board members about the kinds of things you want to see on a regular basis.

[07:42:33] this is a starting point for those conversations and a starting point of updates that you requested. So first and foremost, I want to welcome you to a new document that we are using in the department and then we will update on regularly. We track parent complaints at the Department of Education on a weekly basis and I get a weekly report on the number of complaints, the types of complaints, and where the complaints are being tracked and resolved this is something that we will be moving to a public facing document as we move on to the website and make sure that we're tracking the

[07:43:11] number of complaints we have around special education and the subjects of those complaints so i wanted to preview this with you first and let you know this is where we stood last month and where our current open cases are we have three cases at fairfax county three cases at arlington three cases at chesterfield one at goochland loudon virginia beach danville and bedford and the subject of those cases are on the right hand side and we receive that tracker and resolution on a regular basis so this is something that we've started over the past month and i receive

[07:43:48] this tracker weekly we are going to be using this tracker to start to design prioritize monitoring of our school divisions so as we look at these the complaints that we are receiving we have a significant

increase in complaints for virginia 206 state complaints have been received over the 22-23 school year these complaints represent just under one tenth of a student of the virginia number

[07:44:19] of students with disabilities. So we have 178,894 total children with disabilities in our state, and we have 206 complaints as of July 20, 2023. What we are noticing in the trends and types of complaints is that they are complex and systemic issues that are being raised much more frequently than in prior years. We also have increased the number of multiple filings under an individual

[07:44:54] student and a lot around discipline and basic compliance matters are more frequently the topic of the complaints investigated by our complaints office at the department. What the hope is is to better understand by tracking the complaints and understanding the types of complaints that allows my team to start to prioritize what is happening in the field, what is needed for more prioritized monitoring, where my team needs to spend more frequently. As you notice, Fairfax County was the top of the list on the last chart. We are doing prioritized monitoring right now in Fairfax County.

[07:45:33] So we are shifting our processes to be more responsive to where we are getting a larger volume of complaints. And we are working to develop a prioritized team that is in addition to our regular schedule compliance monitoring to add a prioritized monitoring team to better understand not just the complaints that are coming to Richmond, but what is happening actually in those school divisions. I want to make sure that you are aware that our rating has changed with

[07:46:06] OSEP. So prior to the fiscal federal year 2021 submission, Virginia earned the U.S. Department of Education's highest rating, which is Meets Requirement, for improving outcomes for students with disability and compliance with the IDAA for 11 consecutive years. On June 23rd, Virginia received a needs assessment, needs assistance designation from OSEP. This rating reflects student outcomes and compliance data from the 2021 school year. This data set was the most recent data set available

[07:46:42] under federal special education reporting system during the January 2023 submission. When we break down our score for the needs assistance designation, Virginia scored 19 out of 20 points in the compliance areas. 12 out of 24 points on the results matrix gave us a 72.5%, which dropped us into the needs assistance designation. This score is because Virginia received zero out of eight for students with disabilities tested in grades four through

[07:47:19] eight, four and eight in reading mathematics. That is not because we didn't have any students who were tested in grades four and eight. It's because there was a data file error that was submitted and rejected by the USDOE. We were not able to make that resubmission for that group of students and received a zero out of eight points in that space. So that is currently the status in your deck and on the public deck. You can see that rating. You can see that breakdown of scores on that website. So that website will give you the detailed analysis of why we moved into needs

[07:47:55] assistance and those breakdowns and that information that I've summarized on this slide. Just ask a question. I just figured out I don't have to push this button the whole time. So that was very exciting for me. In terms of their working relationship with the U.S. Department of Education, is there communication that would have caught this in advance, or was it just oversight, or was there a lack of communication on one or both ends? There was a request on multiple occasions. This obviously happened in January before I was in office. There was a

[07:48:30] request on multiple occasions to resubmit the data that was not accepted. When Secretary Gadara and I went to visit with U.S. Department of Education and OSEP, they notified us of this data and how important it is to submit accurate data at that point in time in our meeting with them. In conversation, Mr. Hansen, of what you asked about our relationship with OSEP, we did meet with them in the spring, asked them about what their next steps were. They notified us prior to this letter, but about the September monitoring, what they were looking for and what

[07:49:07] were focusing on on our prioritized monitoring in september the purpose of the visit that they will be doing in september is to monitor our implementation of processes so if we have processes if we have regulations how are those being implemented in the field what are the practices and procedures for our monitoring and how we prioritize that monitoring so some of those steps that i mentioned earlier about tracking our complaints understanding where our parents are are frustrated with their systems better looking at those implementation practices and monitoring

[07:49:44] that are key areas that we're working towards we also are using oseps differentiated monitoring and supervision process and their protocol this is a new protocol that my team meets monthly with osep on to prepare for the monitoring visit so they are meeting monthly with the osep team in preparation and preparing documents sending documents in advance for the prioritized monitoring in september september's monitoring will include meetings with stakeholders that includes our state special education advisory committee our parent and advocacy organizations local school

[07:50:21] divisions and local directors of special education will be part of oseps monitoring what we do know about the oseps monitoring and part of the conversation is it takes six to nine months to get the information and the results and the feedback back from OSEP. And we know that we want to make processes more quickly. So what we have done is we are going to go ahead and hire a team of experts. They are on staff. I met with them at lunch for a brief moment over the

[07:50:55] phone. We are hiring two different experts. One is Bob Pasternak, who currently lives in Virginia and is a former undersecretary at the U.S. Department of Education and Special Education, and Nathan Levinson, who has done extensive work with the Louisiana Department of Education to do a complete program evaluation, both of our internal programs of the programs and the connections we work with school divisions and with parent and advocacy groups to get information back by October 1st, because our goal is to move much more quickly and much more responsibly. And

[07:51:32] we want to honor the work that OSEP is doing and the feedback that OSEP is giving. But we also want that feedback from outside perspectives and well-respected perspectives. Bob Pasternak is extremely well-respected, extremely knowledgeable about family relationships, about how to make sure special education provides supports for children so we're excited to have him come and work with us nathan levinson worked with the louisiana department of education over the past several years and worked with them when they dropped into needs assistance and helped them revision their state

[07:52:09] department and the structure of their state department and how they engage so both organizations bring different lenses to the work and give us the opportunity to really have good holistic feedback in an accelerated time frame. We could work with one or other provider and move slowly through this process, but we need to get support for our children and our families and make sure that we're supporting our school divisions and being able to put systems in place to do that. So we are working

with both of them. We had a quick meeting at lunch. We're getting ready to get started next week, and they will provide reports by September 30th. So we'll have that accelerated feedback to

[07:52:48] help us start in the work much more quickly. We're also changing the BDOE staffing structure, which I mentioned a few times. We are creating an executive director of special education data monitoring and general supervision within the Department of Special Populations. This person will be a flexible prioritized monitoring director with a team that can monitor on those prioritized visits and strategically help us look at not just data, but also parent feedback processes in the school division and help us give more tailored support to some of our school divisions who are

[07:53:26] seeing more parent concerns. So those are things that we are really moving on quickly to make sure that we better understand the systemic kind of concerns that have started popping up in our parent complaints and better support our families and better support our students to make sure, Bill, I think you said this really well last month.

[07:53:45] How do we work on making sure children get what they need to be successful and focus on our students and our families and making sure we're giving them the opportunities and want to make sure that we're being extremely responsive, but also intentional and that we are getting good advice from two different sources that are well respected and have a deep bench in this work.

[07:54:06] So that is where we are with special education. I wanted to kind of give you that preview, but also take time to take questions, get feedback, continue to help collaboratively think about how we focus on our students who need the most and who have the most challenges right now in post-pandemic as our data is showing us.

[07:54:28] Thank you for the two folks you're bringing into the process here. I think the department and the state will be very much benefited by both of them. I concur. I think this is terrific to get some outside help.

[07:54:47] My question would be, how broad is the scope of what you're asking Mr. Pasternak and Mr. Levinson to look at and including, I mean, the parent complaints is sort of the squeaky wheel. wheel but we know from the jlark report i think we know from some of oseps prior reporting but i'm not as clear on that that we've got more you know we've got other indicators of systemic issues we know our divisions are having a hard time attracting and retaining and training and supporting their sped teachers and so my question is will mr pastor next and mr and and obviously

[07:55:24] not all of that's under under the department's uh control but will they be helping you think about what are the broadly about how special ed succeeds or fails either then or on what levers uh the department or the board or others might have to help address those broadly defined problems nathan levinson has a deep bench at looking inside and really thinking about the structures and systems of the agency and how we think about the agency and really getting the agency to think through that. Bob Pasternak has a deep bench on educators, families, field work,

[07:56:03] and understanding that. So we ask them to do complementary work, but different sets of work to make sure we can get as much comprehensive support and feedback and program evaluation and recommendations as quickly as possible. So we've asked them to bifurcate the work a bit and focus in different areas based on their expert work. And I know you're laughing at me, Dr. Siebert, because that's our word for the week, yes.

[07:56:28] And I'm sure even the most recent JLARC report on SOQs had some piece about special ed in it. You'll make all of that, make them aware of all of that range. We are in the process of doing a deep data sharing and a deep dive on documents right now.

[07:56:43] Yes. Thank you. So this is all helpful. Thank you. And I too am excited about Mr. Levinson and Bob Pasternak. Two really terrific folks to have in on this. My understanding, so Fairfax County's in a compliance agreement now with the Office of Civil Rights.

[07:57:01] We have an investigation right now. We are under Office of Civil Rights is investigating at a state level. This is all coming out of FAPE, the pandemic, and I think some other divisions. Could you just like help us? Because I feel like part of this is there's like, there's a bunch of things getting conflated, not by you, but in terms of the public dialogue.

[07:57:21] there's problems with provisions of services to special ed students during the pandemic and again like fairfax is is but there's other divisions i think as well and now we are engaged ocr my understanding is ocr is now looking to oversight for us on civil rights as well could you like talk about that incident because that that i think i think it's just all getting conflated but these are separate issues i have the wrong attorney general here today to talk about ocr specifically but i i would defer to them on the ocr complaints because they are managing two

[07:57:56] specific ocr complaints that have been filed um one is specifically around testing accommodations for field testing um and some access there and then the other one is similar to accommodations and situations but um dev i don't know what i can speak to around those active investigations what i can't i can say we do have two active investigations we do have a settlement on something and i'm not sure if that's moved forward or what i can say to those things i want to make sure i would be inclined

[07:58:32] if we wanted to dig farther into this topic i'd recommend we go into closed session for consultation with council feel that that's necessary at this time mr rotherham uh i would defer to the board i think at some point before long we should get an update on that and then also like you know we see no an issue with a couple it would just probably be good just also you know you had the open complaints i think that was that was helpful like what's the status i mean yeah what's the status of these uh and because there do seem to be multiple uh civil rights investigations happening it'd just be good to kind of know just the status and kind of what's going on and and and again the

[07:59:09] specific issues if it's modifications if it's vape during the pandemic it's just to help us just get a landscape on what's uh i don't think anyone's interested in like sharpshooting you guys on on the response but just getting a sense of what's of the landscape of what is happening because it's it's a it's a piece of this in terms of the public's frustration um so i do think that i would like to give um the superintendent time to get that together yeah um so now i don't think is an opportune moment um however you know we'll get that on on a list of items well and what we could

[07:59:47] do is put a special education standing item on the agenda and have an update monthly for you and so we we could do that um an update on ocr and make that a closed session update on ocr and investigations and that would be great because i think we're getting a lot of questions it's a lot of streams that are kind of and it would be helpful to know the different lanes that this stuff is um happening in sure so i mean i thought before you talked about that it was mainly uh behavioral issues dr coons when i'm

looking on the tracker is it not is it behavioral or not behavioral i mean i guess or maybe is it embedded in some of these subjects issues because we know

[08:00:26] you know behaviors off the charts because of the pandemic just in general so i'm just curious whether these are behavioral issues just writ large discipline i'm sorry discipline issues right and basic compliance matters are more frequently the topic not necessarily tracked in our current tracker as current issues, but they have become more frequent in the types of conversations that are happening. So as you said, post-pandemic, more of the kind of behaviors that we have seen in the news nationally are happening in our own data, probably not during summer so much in the

[08:01:06] types of complaints we're getting. We're just seeing those kinds of matters more frequently popping up than we have in the past. And the tracker is our current open cases versus we are starting to see those kinds of cases up more frequently. Great question. My other just general comment is I've worked with Nate Levinson before. He's a superintendent as well in Massachusetts. So he brings that perspective. But what he did to open my eyes was that often, and I'll be curious whether he thinks this is some of our issues too that kids aren't having access to behavioral

[08:01:42] specialists enough and it's actually a if they could just get access to a behavioral specialist we wouldn't be doing these 15 other things that are in their iep um and so you know i'll be curious whether that's that's the advice he gives here because i've heard him give that to other states and localities and it's really been a game changer for them he had several in our preliminary conversations about what we might be doing, what we could be doing, what we're seeing. He had several insightful things, even around how we think about mild and moderate versus students with complexity and how we think about that. So I'm excited to have the best thinkers helping us

[08:02:22] really get to the root of a lot of these things because the tracker data is interesting and it allows us to do prioritized monitoring, but it's really helpful to have experts really help us dig begin and figure out some of the underlying causes. Just to help us understand, and this may be something we should come back and do in a closed session at some point, but what does needs assistance mean from the department?

[08:02:50] How many states are in that status and what are the potential consequences we need to worry about? I know a large number dropped with us in the 20s. I can't give you exact details about what that means, but there are a large number of states that draft into the first year of needs assistance i can get you all of those details and we could probably give them to you in a weekly briefing pretty easily um however i don't plan on being needs assistance for more than a year that's why we're getting very aggressive in

[08:03:20] supporting this work so happy to get you that information anything else yeah kudos on seizing seizing on a challenge and uh leading thank you well and i want to thank this board um i think the conversation that we had last time i know some of you weren't on this board but this board is continuing to lead that work um some of the things you asked for some of the the questions you had some of the things that you gave feedback on really drove us to move in a more accelerated

[08:04:00] manner so i really appreciate the thought partnership the collaboration and the coherence for our students who are fragile and need our support and need our advocacy so i'm appreciative of the support of the board is there anything else for today i will entertain a motion to

[08:04:23] adjourn thank you we are done thank you thank you



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